

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index #

Date of filing:

-----X
WILSON ROA,

Plaintiff,

Plaintiff designates
Queens County as the
place of trial

-against-

Basis of the venue is
Locus of Occurrence

THE CITY OF NEW YORK, POLICE OFFICER ANDREW
BURGOS-Shield No. 948185 and JOHN DOES-Police
Officers as yet unidentified,

Defendants.

SUMMONS

Plaintiff resides at:
37-15 81st Street
Jackson Heights, NY 11372

County of Queens

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

DEFENDANT'S ADDRESS:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

PLAINTIFF'S ATTORNEYS:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER ANDREW BURGOS-Shield
No. 948185
c/o New York City Police Department, 115th
Precinct
92-15 Northern Boulevard
Jackson Heights, NY 11372

Dated: Brooklyn, New York
August 1, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
WILSON ROA,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER ANDREW
BURGOS-Shield No. 948185 and JOHN DOES-Police
Officers as yet unidentified,

Defendants.

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Plaintiff by his attorneys, **RUBENSTEIN & RYNECKI, ESQS.**, complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF WILSON ROA**

1. That at all times hereinafter mentioned, plaintiff **WILSON ROA** was and still is a resident of the County of Queens, City and State of New York.
2. That all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, **THE CITY OF NEW YORK**, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on March 30, 2018, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and

that thereafter **THE CITY OF NEW YORK** refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on June 5, 2018, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

6. That on February 24, 2018, and at all times hereinafter mentioned and upon information and belief, the defendant, **THE CITY OF NEW YORK**, employed **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, as agents, servants and/or employees.

7. That on February 24, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **WILSON ROA**, was lawfully present at or about the intersection of 76th Street and 41st Avenue, in the County of Queens, City and State of New York.

8. That on February 24, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **WILSON ROA**, was assaulted, battered and falsely arrested by defendants, **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, who were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**, at the aforementioned location.

9. That on February 24, 2018, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

10. That on February 24, 2018, and at all times hereinafter mentioned and upon information and belief the defendants, **POLICE OFFICER ANDREW BURGOS-Shield No.**

948185 and **JOHN DOES-Police Officers** as yet unidentified, who assaulted, battered and falsely arrested the plaintiff, **WILSON ROA**, were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**.

11. That on February 24, 2018, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff **WILSON ROA** was without probable cause and was not the result of an appropriate arrest.

12. That on February 24, 2018, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff **WILSON ROA** was excessive force used upon the plaintiff.

13. By reason of said assault and battery the plaintiff **WILSON ROA** was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

14. By the reason of the foregoing, the plaintiff, **WILSON ROA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF WILSON ROA**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, **THE CITY OF NEW YORK**, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet

unidentified, who assaulted, battered, falsely arrested and violated the civil rights of the plaintiff, **WILSON ROA**.

17. The defendants, **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, negligently utilized excessive force upon the plaintiff, **WILSON ROA**.

18. The defendants, **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, were negligent, reckless and careless in the deportment of their duties as police officers.

19. That the defendant, **THE CITY OF NEW YORK**, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

20. By the reason of the foregoing, the plaintiff, **WILSON ROA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR EXCESSIVE FORCE ON
BEHALF OF WILSON ROA**

21. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "20" inclusive with the same force and effect as if more fully set forth at length herein.

22. That on February 24, 2018, and at all times hereinafter mentioned and upon information and belief, **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, while acting as agents, servants and/or employees of the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY**

POLICE DEPARTMENT, used unlawful and excessive physical forced against the plaintiff, **WILSON ROA**, when he was assaulted and battered at or about the intersection of 76th Street and 41st Avenue, in the County of Queens, City and State of New York.

23. While the plaintiff, **WILSON ROA**, was handcuffed and placed under arrest he was forcefully and violently assaulted by **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers**, while acting as an agent, servant and/or employee of the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**.

24. The excessive violence used by **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, while acting as agents, servants and/or employees of the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, which included assaulting, handcuffing and falsely arresting the plaintiff at or about the intersection of 76th Street and 41st Avenue, in the County of Queens, City and State of New York.

25. The plaintiff, **WILSON ROA**, presently continues to suffer permanent injuries including physical, psychological and emotional torment and physical scars from the incident of February 24, 2018.

26. By the reason of the foregoing, the plaintiff, **WILSON ROA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF WILSON ROA**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "26" inclusive with the same force and effect as if more fully set forth at

length herein.

28. That on February 24, 2018, and at all times hereinafter mentioned and upon information and belief, the defendants, **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, were working within the scope of their employment and authority with the defendant, **THE CITY OF NEW YORK**, when they arrested and confined the plaintiff **WILSON ROA**.

29. That on February 24, 2018, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

30. That as a result of the aforesaid false arrest and confinement, plaintiff, **WILSON ROA**, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

31. By the reason of the foregoing, the plaintiff, **WILSON ROA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF WILSON ROA**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That on February 24, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, were acting within the scope of

their employment when they, without justification and without probable cause, imprisoned the plaintiff **WILSON ROA**.

34. That the defendants, **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

35. By the reason of the foregoing, the plaintiff, **WILSON ROA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF WILSON ROA**

36. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "35" inclusive with the same force and effect as if more fully set forth at length herein.

37. That the defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff, **WILSON ROA** through their actions.

38. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, **WILSON ROA**.

39. That as a result of said intentional and negligent acts, the plaintiff, **WILSON ROA**, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse

parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

40. By reason of the foregoing, the plaintiff, **WILSON ROA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF WILSON ROA**

41. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "40" inclusive with the same force and effect as if more fully set forth at length herein.

42. That on February 24, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

43. That on February 24, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, **WILSON ROA**.

44. That on February 24, 2018, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff, **WILSON ROA** sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

45. By reason of the foregoing, plaintiff, **WILSON ROA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A EIGHTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF WILSON ROA**

46. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "45" inclusive with the same force and effect as if more fully set forth at length herein.

47. The defendant, **THE CITY OF NEW YORK**, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, **WILSON ROA**.

48. The defendant, **THE CITY OF NEW YORK**, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

49. The defendant, **THE CITY OF NEW YORK**, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

50. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

51. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was aware that

these individual defendants, including but not limited to **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

52. As a direct and proximate result of this unlawful conduct, the plaintiff, **WILSON ROA**, sustained the damages hereinbefore alleged.

**AS AND FOR AN NINTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF WILSON ROA**

53. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "52" inclusive with the same force and effect as if more fully set forth at length herein.

54. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

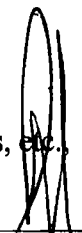
55. That the defendant, **THE CITY OF NEW YORK**, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to **POLICE OFFICER ANDREW BURGOS-Shield No. 948185** and **JOHN DOES-Police Officers** as yet unidentified, herein-above alleged.

56. By the reason of the foregoing, the plaintiff, **WILSON ROA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, **WILSON ROA**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, **WILSON ROA**, demands judgment both compensatory and exemplary in an

amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, **WILSON ROA**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, **WILSON ROA**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, **WILSON ROA**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, **WILSON ROA**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Court on the **Sixth** Cause of Action; plaintiff, **WILSON ROA** demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, **WILSON ROA** demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eight** Cause of Action; plaintiff, **WILSON ROA** demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
August 1, 2018

Yours, etc.,


SCOTT RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
WILSON ROA
16 Court Street Suite 1717
Brooklyn, New York 11241

(718) 522-1020

File No.: 18WR02-24

ATTORNEY'S VERIFICATION

SCOTT RYNECKI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner at RUBENSTEIN & RYNECKI, attorneys of record for Plaintiff **WILSON ROA**, in the action within. I have read the annexed **COMPLAINT**, and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Brooklyn, New York
August 1, 2018



SCOTT RYNECKI